

**Vertex Pharmaceuticals**
**(Spain), S.L.**
**C/ Marqués de Villamagna, 3 - 13th**
**Madrid, 28001, Spain**

VENDOR:
ADN COMUNICACIÓ SL
C INDUSTRIA 127 3ERA PLANTA
BARCELONA, , 08025
Spain

# Purchase Order

| PURCHASE ORDER NO. | REVISION | Page |
|---|---|---|
| 2001619 | 0 | 1 of 2 |

THIS PURCHASE ORDER NO. MUST APPEAR ON ALL INVOICES, PACKING LISTS, CARTONS AND CORRESPONDENCE RELATED TO THIS ORDER

SHIP TO:
Vertex Pharmaceuticals (SPAIN), S.L.
C/ Marqués de Villamagna, 3-13th
Madrid, 28001
Spain

BILL TO:
Vertex Pharmaceuticals (SPAIN), S.L.
C/ Marqués de Villamagna, 3-13th
Madrid, 28001
Spain
spain_finance@vrtx.com

| VERTEX ACCOUNT NO | DATE OF CREATION | BUYER: |
|---|---|---|
| | 17-JAN-2022 | Thethi , Mrs. Ranvinder |
| PAYMENT | SHIP VIA | C.I.P |
| 45 NET | BESTWAY | DESTINATION |
| FREIGHT TERMS | REQUESTOR/DELIVER TO | FAX TO |
| Prepaid & Add | Soto, Sergio | - |

| ITEM | CATALOG NUMBER & DESCRIPTION | DELIVERY DATE | QTY | UOM | UNIT PRICE | EXTD PRICE |
|---|---|---|---|---|---|---|
| 1 | MARKETING_ADN_DR. BARRY VIDEO 2022 | 15-JAN-2022 | 744 | AMOU | 1.00 | 744.00 |
| | | | | | **Total** EUR | 744.00 |

**Special Instructions:**

**APPROVED BY**

**DATE** 17-JAN-2022

**In the event that Vertex and Seller have entered into a master services agreement or other form of "master agreement", for example, a purchasing, license/subscription or supply agreement, then to the extent of a conflict or difference between the provisions of such agreement and the provisions set forth herein, the provisions of such master agreement shall take precedence.**

## PURCHASE ORDER TERMS AND CONDITIONS

**1. FULL INTEGRATION.** This purchase order and any attachments hereto (this "PO"), shall constitute an offer of **Vertex Pharmaceuticals (Spain), S.L.**, whose company number is C.I.F. No. B86631686 and registered address is C/ Marqués de Villamagna, 3 - 13th, 28001 Madrid ("Vertex") to Seller to purchase the goods and/or services identified in this PO (individually and collectively, "Product") solely upon the terms and conditions set forth in this PO. This PO may be accepted by performance, orally or in writing by Seller. Written acceptance of this PO need not be signed to be effective. No conflicting or additional terms or conditions proposed by Seller shall be binding or of any force or effect whatsoever unless and until they are expressly accepted by Vertex in writing. Any payment in full or in part for, or any acceptance of, any of the Product by Vertex, or any failure of Vertex to object to any alternate terms or conditions proposed by Seller, shall not be deemed to constitute assent of Vertex to any such alternate terms or conditions. The terms and conditions of this PO shall constitute the complete and exclusive statement of the agreement between Vertex and Seller relating to the Product, and may hereafter be modified only by a writing referencing this PO signed by both Vertex and Seller.

**2. PRICE AND PAYMENT.** Seller shall invoice the unit price stated for the Product in this PO. The amount of any taxes, fees, and expenses (including shipping costs, insurance, and tariffs), if any, associated with the purchase by and delivery to Vertex of the Product shall be set forth completely and accurately on the face of this PO. Unless otherwise stated in this PO, invoices shall be rendered in Euros and shall provide for payment net 45 days upon receipt by Vertex of an acceptable invoice. All such invoices shall be sent electronically to Spain_finance@vrtx.com . Duplicate invoices should not be sent and will not be honored.

**3. READY DATES.** All Product shall be delivered to (or performed at in the case of services as Product) the "ship to" address(es) on the date(s) specified in this PO. If the Product or any portion thereof has a limited duration (*i.e.*, "shelf life"), production ahead of Seller's normal processing time or release date shall not be permitted unless specifically authorized in writing by Vertex. All Product identified in this PO shall, prior to delivery, be held by Seller without risk or expense to Vertex.

**4. SHIPPING AND DELIVERY**. If indicated in this PO, prior to the shipment of any Product, Seller shall submit to Vertex samples of such Product, in finished form, and Vertex will notify Seller as to whether Vertex confirms that the sample Product meets the specifications set forth in this PO ("Specifications"), is otherwise acceptable for use and Product sampled may be shipped. At Vertex' s election, Seller will be permitted to ship the Product prior to Vertex 's testing of the pre-shipment sample, *provided* Seller's analytical testing positively verifies that the Product meets the Specifications. Seller agrees to: **(a)** properly pack, mark, and ship Product in accordance with the requirements of Vertex (or if not specified by Vertex, in accordance with industry accepted standards), relevant carriers and insurers, and, if applicable, the country of destination; **(b)** route shipments in accordance with Vertex's instructions; **(c)** if applicable, prepay all charges for handling, packaging, storage, and transportation of Product; and **(d)** promptly forward the original bill of lading or other shipping receipt for each shipment in accordance with Vertex's instructions. Unless otherwise specified in this PO, all Product shall be delivered CIP (as defined in INCOTERMS 2010) the *ship to* address set forth in this PO.

**5. QUANTITIES TO BE SUPPLIED.** Vertex shall not be liable for Product received in excess of the quantities specified in this PO. Any excess quantities may be returned by Vertex at Seller's risk and expense, provided always that Vertex shall be entitled at its option to purchase the excess Product, at a price not to exceed the unit purchase price specified in this PO.

**6. LATE DELIVERY.** Time is of the essence of Seller's performance of its obligations under this PO. If Product is not received within 45 days of the time specified in this PO (or in a timely manner if no such time is specified), Vertex may cancel this PO without penalty by written notice to Seller. If any part of the purchase price for the Product had been paid prior to any such cancellation, Seller shall promptly refund the full amount so paid to Vertex.

**7. CERTAIN WARRANTIES.** In addition to all other express and implied warranties, and not as a limitation thereof, Seller represents, warrants and covenants that **(a)** the Product will be manufactured, labeled, packaged, packed for shipment, and shipped in conformity with all applicable laws, ordinances, regulations, standards, European and national guidelines (including but not limited to any rules regulating any aspects of pharmaceutical companies or products, any anti-corruption laws, and any data privacy laws); **(b)** the Product, will conform to the Specifications, will be consistent with the samples which Vertex used to qualify Seller where applicable, and will be accompanied by any relevant Material Safety Data Sheet, quality control analysis and certification, where applicable; **(c)** the Product was manufactured, tested or and, if required, certified, licensed or registered in accordance with all applicable laws, ordinances, regulations, and standards; **(d)** Seller will be in compliance with the terms and conditions of this PO; and **(e)** the Product will be free from defects in design materials and workmanship under normal use and service. In addition, Seller further warrants that it will provide, in the case of services as Product, the Product with all necessary skill and care and such reasonable requirements as directed by Vertex.

**8. COMPLIANCE WITH OTHER LAWS.** Without limiting the generality of the foregoing, Seller expressly represents and warrants that all use of the Product by Vertex in the ordinary manner for which it is intended, shall be in conformity with all applicable laws, ordinances, regulations, standards, European and national guidelines (including but not limited to any rules regulating any aspects of pharmaceutical companies or products, any anti-corruption laws, and any data privacy laws). With regard to the supply of goods as a chemical Product, Seller further expressly represents and warrants that none of the Product is **(a)** a misbranded hazardous substance or a banned hazardous substance as defined in any applicable laws, ordinances, regulations, standards, and European and national guidelines; **(b)** breaches applicable to provisions of the European Communities (Classification, Packaging, Labeling and Notification of Dangerous Substances) Regulations 2003 - 2008; **(c)** adulterated or misbranded within the meaning of any applicable laws, ordinances, regulations, standards, and European and national guidelines.

**9. INTELLECTUAL PROPERTY.** Seller expressly represents and warrants that its manufacture, sale, use, cataloging, or advertising of any article, material, or service provided or furnished hereunder, and the purchase, use and any resale by Vertex of the Product, do not and will not infringe on any patent, trademark, trade name, copyright, trade secret, or other intellectual property rights held by any third party. Seller shall retain exclusive ownership rights to processes and methods owned or otherwise controlled by Seller prior to the earliest date set forth in this PO or acquired through efforts unrelated to this PO. Vertex shall retain exclusive ownership rights to the Product, including the right to use the same, and to all other technology owned or otherwise controlled by Vertex prior to the earliest date set forth in this PO or acquired through efforts unrelated to this PO.Vertex may use, have used or transfer the Product for any purpose. Seller shall promptly disclose to Vertex all inventions, discoveries, or confidential know-how whether or not patentable or copyrightable, made, conceived or reduced to practice in connection with performance under this PO (collectively, "Intellectual Property"). All Intellectual Property shall be the exclusive property of Vertex and Seller hereby assigns to Vertex all right, title and interest in and to all such Intellectual Property.

**10. INSPECTION OF PRODUCT.** Notwithstanding any prior payment, Vertex has the right to inspect and test any and all of the Product at destination. If any defect or non-conformity is found, including any latent defect or non-conformity which is not reasonably apparent on initial inspection, but which is later discovered by Vertex, Vertex, after the discovery of such defect or non-conformity, may, upon notice to Seller, **(a)** reject and return Product which is defective or non-conforming to Seller at Seller's risk and expense, and Seller shall promptly refund all amounts paid, or credit Vertex with such amounts, as Vertex requests, or **(b)** Vertex may elect to require the replacement or correction of the defective or non-conforming Product by Seller, which Seller shall undertake at its expense promptly upon any such request. No replacement or correction shall be made, however, without prior authorization of Vertex.

**11. TERMINATION.** Vertex may, at any time, terminate all or any part of this PO. Seller agrees that any termination charges shall be limited to actual costs of materials and labor incurred hereunder prior to Seller's knowledge of termination, and further agrees to take all steps reasonably possible to mitigate such termination charges. Within ten days of the effective date of termination, Seller shall submit an invoice for any fees due and owing. Upon the insolvency of the other party, the other party may terminate this PO by written notice to the insolvent party.

**12. CONFIDENTIALITY.** All information, not publicly available, which is furnished or disclosed to Seller by Vertex, or a third party on Vertex's behalf, in connection with this PO shall be treated by Seller as the confidential and proprietary information of Vertex, and such information shall not be disclosed to any person for any purpose other than the performance of Seller's obligations under this PO at any time including following the completion, expiration, or termination of this PO, or used to the advantage of any person or entity other than Vertex.

**13. INDEMNIFICATION.** Seller shall indemnify, defend, and hold harmless Vertex, its officers, directors, and employees from and against any and all losses, liabilities, damages, and expenses that may be sustained by Vertex or any such officers, directors, or employees that is caused by or arises out of the gross negligence or willful misconduct of Seller or its officers, directors, or employees.

**14. GOVERNING LAW; JURISDICTION.** This PO shall be construed in accordance with and governed by the laws of Spain and Seller agrees, to the benefit of Vertex, to submit to the non-exclusive jurisdiction of the Courts of Spain. No aspect of this PO shall be interpreted or enforced pursuant to the United Nations Convention on Contracts for the International Sale of Goods. Seller irrevocably waives all rights asserted or implied under the European Communities (Late Payment in Commercial Transactions) Regulations 2012. Seller shall promptly pay Vertex on demand all legal fees and expenses Vertex may incur to assert or enforce its rights against Seller hereunder or at law.

**15. FORCE MAJEURE.** Vertex reserves the right to defer the date of delivery or payment of Products or to cancel this PO or reduce the volume of the Products ordered if it is prevented from or delayed in the carrying on of its business due to unavoidable causes beyond its control and without its fault or negligence.

**16. SURVIVAL.** Seller agrees that all representations and warranties and all confidentiality, assignment of inventions and discoveries and indemnification obligations contained in this PO shall survive shipment and any acceptance of, and any payment in-full or part for, the Product.

**17. ASSIGNMENT.** Seller will not assign its rights nor subcontract its duties without Vertex's consent. Any unauthorized assignment by Seller is void. Vertex may assign its rights and obligations under this PO to an affiliate or the purchaser of all or substantially all of its assets or to its successor entity or acquirer in the event of a merger, consolidation or change in control of Vertex.